



Republic of the Philippines  
Province of Sorsogon  
**MUNICIPALITY OF PRIETO DIAZ**  
LGU TIN: 000794065  
Email Address: [sbprietodiaz@gmail.com](mailto:sbprietodiaz@gmail.com)



FILE COPY

Office of the Secretary to the Sangguniang Bayan



1st Endorsement  
July 21, 2025

SPOC - 07212025 - 217

|                                                  |                |
|--------------------------------------------------|----------------|
| OFFICE OF THE SECRETARY TO THE SANGGUNIANG BAYAN |                |
| LOCAL GOVERNMENT UNIT<br>Prieto Diaz, Sorsogon   |                |
| <b>RELEASED</b>                                  |                |
| BY: PINKY E. DESTURA                             |                |
| DATE: 7-21-25                                    | TIME: 3:31 pm. |

Respectfully transmitted to the Honorable Sangguniang Panlalawigan through **Hon. KRUNIMAR ANTONIO ESCUDERO II, MDMG**, the herein attached Ordinance No. 2025-07 entitled: **"AN ORDINANCE IMPOSING RESTRICTED ACCESS OF MINORS TO ALCOHOLIC BEVERAGES IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for its information, review and appropriate action.

  
**BERNADETTE R. ESPEÑA – YAO**  
Secretary to the Sangguniang Bayan

Cc:

- Hon. Romeo D. Domasian  
Municipal Mayor
- Ms. Betty Arines  
MSWDO
- the Municipal Police Station  
through its Chief of Police, PCapt. Sergio Paulo F. Jimenez
- the 23 Sangguniang Barangay
- all business establishments



Republic of the Philippines  
Province of Sorsogon  
**MUNICIPALITY OF PRIETO DIAZ**  
LGU TIN: 000794064  
Official Email Add: [sbprietodiaz@gmail.com](mailto:sbprietodiaz@gmail.com)



**Office of the Secretary to the Sangguniang Bayan**

FILE COPY

1<sup>st</sup> Endorsement  
November 3, 2025

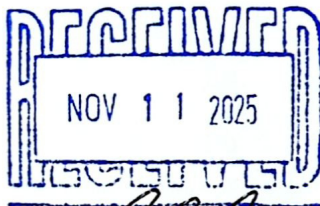
SBAC - 11032025 - 365  
OFFICE of the SANGGUNIANG BAYAN  
LOCAL GOVERNMENT UNIT  
Prieto Diaz, Sorsogon  
**RELEASED**  
BY: PINKY E. DESTURA  
DATE: 11/03/25 TIME: 2:52 pm

Respectfully transmitted to **HON. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Ordinance No. 2025-07 entitled: **"AN ORDINANCE IMPOSING RESTRICTED ACCESS OF MINORS TO ALCOHOLIC BEVERAGES IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON (AS AMENDED)"** for his information and appropriate action.

**BERNADETTE R. ESPEÑA- YAO**  
Secretary to the Sangguniang Bayan

Cc:

- Mr. Albert Destura, MYDO
- Hon. Rene Joseph Domasian, SKMF President
- Office of the MSWDO
- PNP / Municipal Police Station
- 23 Punong Barangays



**ALBERT D. DESTURA**  
LYDO

MUNICIPAL SOCIAL WELFARE AND  
DEVELOPMENT OFFICE  
PRIETO DIAZ, SORSOGON  
**RECEIVED**

DATE: 11/11/25 RECEIVED BY: [Signature]

Rene Joseph D. Domasian  
SKMF PRESIDENT  
11-11-25

OFFICE OF THE MAYOR  
LGU PRIETO DIAZ, SORSOGON  
**RECEIVED**  
By: \_\_\_\_\_  
Date: 11/11/25  
Time: 5:05

Received by:  
PNP PRIETO DIAZ



# RECEIVING COPY

| NO  | NAME               | POSITION/ADDRESS             | SIGNATURE |
|-----|--------------------|------------------------------|-----------|
| 1.  | Vicente D. Dag     | San Juan                     |           |
| 2.  | Josaf D. Emaas     | San Juan                     |           |
| 3.  | DOMINIC D. DELUNA  | BRGY. KOLUP<br>PAR/TERMINADO |           |
| 4.  | MARVIN L. FASANO   | CANAYAT/CDU                  |           |
| 5.  | PEY E. LUNA        | PO - CALAO                   |           |
| 6.  | Domingo D. Baet    | P/B                          |           |
| 7.  | Ignacio D. Camacho | Sta. Lucilla                 |           |
| 8.  | RICARDO S. SORIANO | BARBARA SU                   |           |
| 9.  | JOAN D. BAYOCA     | SAN ISIDRO                   |           |
| 10. | Sante Monon        | Quidolof                     |           |
| 11. | JOHAN D. BONITO    | LUPU                         |           |
| 12. | Narciso D. Papat   | San Ramon                    |           |
| 13. | Donatillo V. Dizon | manlabang                    |           |
| 14. | Manife Desamp      | talungin                     |           |
| 15. | Rosalie D. Domalan | BS / Rizal                   |           |
| 16. | CLISTO D. DOMASIB  | P/B                          |           |
| 17. | RAUL D. EVA        | P/B                          |           |
| 18. | Jaime D. Dato      | Perlas                       |           |
| 19. | JOSE D. DUTAO      | DB BRILLANT                  |           |
| 20. | Ramil DEMATEOS     | P/B TUPAZ                    |           |
| 21. | Edwin B. Domaring  | SNK ROTONDA / IPM            |           |
| 22. | Elena P. Nanto     | Sto. Domingo                 |           |
| 23. | JOSE V. SANTIAGO   | San Rafael                   |           |



Republic of the Philippines  
Province of Sorsogon  
**MUNICIPALITY OF PRIETO DIAZ**  
LGU TIN: 000794065  
Official Email Add: [sbprietodiaz@gmail.com](mailto:sbprietodiaz@gmail.com)



## Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11<sup>TH</sup> SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JUNE 16, 2025 AT ITS SESSION HALL

**PRESENT:**

|                              |                                        |
|------------------------------|----------------------------------------|
| Hon. Avon D. Domalaon, MPA   | Municipal Vice Mayor/Presiding Officer |
| Hon. Jo Madel D. Domalaon    | S. B. Member                           |
| Hon. Bienvenido D. Ayo, Jr.  | S. B. Member                           |
| Hon. Luis Lee E. Espeña, Jr. | S. B. Member                           |
| Hon. Alice D. Emano          | S. B. Member                           |
| Hon. Juan D. Ebid            | S. B. Member                           |
| Hon. Albert D. Destura       | S. B. Member                           |
| Hon. Joseph H. Yap, Jr.      | S. B. Member                           |
| Hon. Antonio J. Emano, Jr.   | LnB Pres./S. B. Member                 |

**ABSENT:**

|                              |                                           |
|------------------------------|-------------------------------------------|
| Hon. Rene Joseph D. Domasian | SKMF Pres./S. B. Member                   |
| Hon. Rodolfo E. Diolata      | Deceased (November 7, 1966 - May 4, 2025) |

### ORDINANCE NO. 2025-07

Introduced by Hon. Albert D. Destura and Hon. Alice D. Emano

#### **AN ORDINANCE IMPOSING RESTRICTED ACCESS OF MINORS TO ALCOHOLIC BEVERAGES IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON (AS AMENDED)**

WHEREAS, Section 13, Article II of the 1987 Philippine Constitution provides that the State recognizes the vital role of the youth in nation-building and shall promote and protect their physical, moral, spiritual, intellectual, and social well-being;

WHEREAS, the State shall protect the nation's youth from the effects of factors detrimental to their development and progress;

WHEREAS, drinking or consumption of alcohol poses a risk to the individual and society. The exposure of adolescents to alcohol can lead to poor brain development and is associated with risky behavior;

WHEREAS, according to World Health Organization (WHO), alcohol is a psychoactive substance with dependence-producing properties that has been widely used in many cultures for centuries. The harmful use of alcohol causes a high burden of disease and has significant social and economic consequences. Further, the consumption of alcohol is associated with a risk of developing health problems such as mental and



behavioral disorders, including alcohol dependence, and major non-communicable diseases e.g. liver cirrhosis, cancers and cardiovascular diseases. Likewise, alcohol consumption arises from unintentional and intentional injuries, including those due to road traffic crashes, violence, and suicide. Fatal alcohol-related injuries tend to occur in relatively younger age groups;

WHEREAS, Section 16 of the Local Government Code of 1991 mandates LGU to craft ordinances that would promote the general welfare of its inhabitants;

WHEREAS, Section 447 (1)(v) of the same Code empowers the Sangguniang Bayan to enact ordinances intended to prevent, suppress activities inimical to the welfare and morals of the inhabitants like habitual drunkenness in public places and impose appropriate penalties thereof;

WHEREAS, in view of the foregoing premises, there is need to enact appropriate ordinance to curb the progression of alcohol abuse and dependence including its inherent risks by prohibiting the access of minors to alcohol and penalizing those who provide access of minors to alcoholic drinks;

NOW THEREFORE, be it ordained by the Sangguniang Bayan in session;

#### **Section 1. TITLE**

This ordinance shall be known as the "Restricted Access of Minors to Alcoholic Beverages Ordinance of Municipality of Prieto Diaz, Sorsogon."

#### **Section 2. PURPOSE AND INTENT**

The purpose of this ordinance is to prohibit minors from purchasing alcoholic drinks/ beverages to minors. The intent is to safeguard the health, safety, and well- being of minors by reducing their access to and consumption of alcohol.

#### **Section 3. DEFINITION OF TERMS**

For purposes of this ordinance, the following terms are hereby defined:

1. Alcohol - shall refer to alcohol beverages classified into wine, beer and distilled spirits, or any other intoxicating liquor, containing thirty per centum or above (60 proof and above) volume, as per Section 6 of Presidential Decree No. 1619.
2. Business Establishment - shall refer to a place used for commercial purposes, such as bars, restaurants, dance clubs, hotels, retail stores, supermarkets, groceries, convenience store and other places with common business areas
3. Intervention Program - refers to a series of activities which are designed to address issues that caused the child to commit an offense. It may take the form of an individualized treatment program which may include counseling, skills training education, and other activities that will enhance his/her psychological, emotional and psycho-social well-being
4. Minor - refers to a person below eighteen (18) years of age

#### **Section 4. PROHIBITION ON MINORS**

1. It shall be unlawful for any minors to purchase and possess alcoholic or intoxicating beverages.



2. It shall be unlawful for any minors to consume alcoholic beverages containing thirty per centum or above (60 proof and above) volume, as per Section 6 of Presidential Decree No. 1619.
3. It shall be unlawful to any minor to request/solicit/displace/demand any alcoholic or intoxicating beverages.

## **Section 5. PROHIBITION ON PUBLIC SELLING OF ALCOHOLIC OR INTOXICATING BEVERAGES TO MINORS**

It shall be unlawful for any person, establishment, or entity to sell, serve, or provide alcoholic or intoxicating beverages to a minor.

## **Section 6. COMPLIANCE AND ENFORCEMENT**

1. All business establishments selling alcoholic beverages shall prominently display signage indicating the legal drinking age and the prohibition of alcohol sales to minors.
2. Law enforcement agencies within the jurisdiction of Prieto Diaz shall strictly enforce the provisions of this ordinance and conduct regular inspection to ensure compliance.
3. Establishments selling alcohol beverages shall implement strict identification checks to verify the age of potential buyers.
4. Any person who reasonably believes that minor is attempting to purchase alcoholic beverages may report the incident to the appropriate authorities.
5. Upon completion of the Intervention Program of the MSWDO a Certificate of Compliance must be issued.



## **Section 7. PENALTY CLAUSE**

7.1 Owners/operators of business establishments operating within the territorial jurisdiction of Prieto Diaz who are violating the provisions of this ordinance shall be imposed with the following fines and penalties:

- a. 1<sup>st</sup> Offense – Written notice of violation and a fine of P1,000.00
- b. 2<sup>nd</sup> Offense – Written notice of violation and a fine of P 2,000.00
- c. 3<sup>rd</sup> Offense – Written notice of violation, a fine of P2,500.00 and revocation of business permit



7.2 Minors who are caught violating Section 4 hereof shall be brought to their residence to be released to the custody of their parents and/ or guardian. Further, the minor and parents and/ or guardian shall be required to attend intervention program to be conducted by the Barangay Council for the Protection of Children (BCPC) and Municipal Social Welfare and Development Office.

7.3 Adults found guilty of consenting to, allowing the minor, or encouraging the minor, to purchase and possess any liquor or alcohol beverages or participate in events involving alcohol in public, specified in Section 5 hereof shall be penalized and sanctioned with the following penalty of fines:

- a. 1<sup>st</sup> Offense – a fine of P 500.00
- b. 2<sup>nd</sup> Offense – a fine of P 1,000.00
- c. 3<sup>rd</sup> Offense – a fine of P 2,500.00



## **Section 8. IMPLEMENTING RULES AND REGULATIONS**



The Office of the Municipal Mayor shall make the IRR within thirty (30) days after the approval of the said ordinance and shall create a Task Force for the strict implementation of the provisions of this ordinance.

#### **Section 9. APPREHENDING PERSONNEL**

The Barangay Tanod in every barangay and the PNP/Municipal Police Station are hereby authorized to implement and apprehend violators of the said ordinance.

#### **Section 10. PUBLIC AWARENESS**

The Office of the Municipal Mayor, through the assistance of the Municipal Health Office, Municipal Treasurer's Office, Municipal Social Welfare and Development Office, Liga ng mga Barangay Office, and PNP Prieto Diaz shall undertake public awareness campaign and/ or widest information dissemination to all concerned.

#### **Section 11. SEPARABILITY CLAUSE**

If, for any reason, any section or provision of this ordinance is declared invalid, the other sections or provisions hereof not affected by such declaration shall remain in force and effect.

#### **Section 12. REPEALING CLAUSE**

All ordinances, rules and regulations or parts thereof, which are inconsistent or in conflict with the provisions of this ordinance are hereby repealed, amended and or modified accordingly.

#### **Section 13. EFFECTIVITY**

This ordinance shall take effect upon the completion of the publication requirement as provided for in the Local Government Code of 1991.

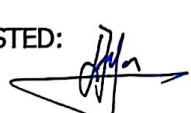
ENACTED: JUNE 16, 2025

Let copies of this ordinance be forwarded to Hon. Romeo D. Domasian, Municipal Mayor; copy furnished Mr. Albert Destura, Municipal Youth Development Officer (MYDO); Hon. Rene Joseph Domasian, SKMF President; Atty. Jothan Detecio, Office of the MSWDO; the 23 Punong Barangays through their respective Punong Barangays; all business establishments selling alcoholic beverages; and all concerned for their information and appropriate action and all concerned for their information and appropriation action.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING

  
**BERNADETTE R. ESPEÑA-YAO**  
Secretary to the Sangguniang Bayan

ATTESTED:

  
**Hon. AVON D. DOMALAON, MPA**  
Municipal Vice Mayor/Presiding Officer

APPROVED:

  
**Hon. ROMEO D. DOMASIAN, PhD**  
Municipal Mayor  
Date approved: OCT 29 2025

*Amended as per SP Resolution No. 362-2025 dated August 11, 2025*



Republic of the Philippines  
**PROVINCE OF SORSOGON**  
Sorsogon City



## **SANGGUNIANG PANLALAWIGAN**

SP Building, Gov. Augusto G. Ortiz Drive corner, Gov. Salvador C. Escudero, Sr. Drive,  
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

September 5, 2025

**TRANSMITTAL NO. 459-2025**

**TRANSMITTAL FOR: THE HONORABLE SANGGUNIANG BAYAN**

**Thru: Ms. BERNADETTE E. YAO**

, Secretary to the Sangguniang Bayan  
LGU – Prieto Diaz, Sorsogon

Respectfully transmitting the herein resolution approved by the 12<sup>th</sup> Provincial Board on **August 11, 2025 (7<sup>th</sup> Regular Session)** for your information and reference.

### **RESOLUTION NO. 362-2025**

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2025-07, ENTITLED: "AN ORDINANCE IMPOSING RESTRICTED ACCESS OF MINORS TO ALCOHOLIC BEVERAGES IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

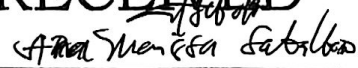
Prepared by:

  
**RHEA T. DIESTA**  
Local Legislative Staff Officer III

Noted:

  
**ATTY. RODOLFO C. DEALCA, JR.**  
Secretary to the Sangguniang Panlalawigan

UBLC 10 03 2025 370

|                                                                                           |
|-------------------------------------------------------------------------------------------|
| OFFICE of the SANGGUNIANG BAYAN<br>LOCAL GOVERNMENT UNIT<br>Prieto Diaz, Sorsogon         |
| <b>RECEIVED</b>                                                                           |
| BY:  |
| DATE: 09/03/25 TIME: 10:00 AM                                                             |





Republic of the Philippines  
**PROVINCE OF SORSOGON**  
Sorsogon City



**SANGGUNIANG PANLALAWIGAN**

*SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,  
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700*

EXCERPT FROM THE JOURNAL OF THE 7<sup>TH</sup> REGULAR SESSION OF THE 12<sup>TH</sup> PROVINCIAL BOARD ON AUGUST 11, 2025 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

**PRESENT:**

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

**1<sup>ST</sup> DISTRICT**

Hon. Maria “Nini” O. Ravanilla  
Hon. Edmundo A. Atutubo  
Hon. Rommel John C. Mella  
Hon. Luis C. Leosala, Jr.  
Hon. Fernando David H. Duran III

**2<sup>ND</sup> DISTRICT**

Hon. Ramil M. Robles  
Hon. Benito L. Doma  
Hon. Roland R. Añonuevo  
Hon. Eduardo E. Ong, Jr.  
Hon. Christian D. Lim

**EX-OFFICIO**

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League  
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay  
Hon. Karl Marx H. Lozada – Provincial President, Sangguniang Kabataan Federation

-oOo-

**RESOLUTION NO. 362-2025**

**RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2025-07, ENTITLED: “AN ORDINANCE IMPOSING RESTRICTED ACCESS OF MINORS TO ALCOHOLIC BEVERAGES IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.”**

**WHEREAS**, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2025-07 for review and appropriate action;

**WHEREAS**, the ordinance intends to safeguard the health, safety, and well-being of minors by reducing their access to and consumption of alcoholic beverages in the Municipality of Prieto Diaz;

**WHEREAS**, to efficiently and effectively implement the ordinance, the Board suggests the following:

- To include in Section 6, thereof the provision on data submission of barangays to MSWDO for monitoring.

8

7

- It must clearly state in the said ordinance, that minors are prohibited from consuming alcoholic beverages containing thirty per centum or above (60 proof or above) volume, as a valid undertaking of LGUs and in support of Section 6 of Presidential Decree No. 1619.
- Under Section 9, Apprehending personnel, the Philippine National Police should be included as among the authorized personnel to enforce the ordinance and apprehend violators.
- Section 7.3, Penalty Clause, it shall be specified that adults who encourage minors to participate in events involving alcohol in public, should likewise be penalized.
- Under Section 7.3, Penalty Clause, to impose a maximum fine of Two Thousand Five Hundred Pesos (P2,500.00) or imprisonment for adults found guilty of consenting to or allowing a minor to purchase or possess any liquor.
- In Section 8, to specify the timeframe for drafting the IRR and identifying the responsible implementing body.

**WHEREAS**, the ordinance is *intra vires* per Section 447 (a) (1) (v) and Section 16 of R.A. No. 7160, otherwise known as the Local Government Code of 1991;

**NOW, THEREFORE**, on motion of Hon. Christian D. Lim, duly seconded by Hon. Roland R. Añonuevo, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE VALID PRIETO DIAZ ORDINANCE NO. 2025-07, ENTITLED: "AN ORDINANCE IMPOSING RESTRICTED ACCESS OF MINORS TO ALCOHOLIC BEVERAGES IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."**

**LET COPIES** of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

**APPROVED.**

-oOo-

**I HEREBY CERTIFY** to the correctness of the foregoing.

**ATTESTED:**

  
**ATTY. RODOLFO C. DEALCA, JR.**  
Secretary to the Sangguniang Panlalawigan

  
**HON. KRUNIMAR ANTONIO D. ESCUDERO II, MDMG**  
Vice Governor/Presiding Officer